

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. and OCEAN NETWORK EXPRESS
(NORTH AMERICA) INC. –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)**

BOE STATUS REPORT

As directed by the Administrative Law Judge’s (ALJ) Initial Order served January 6, 2022, and Order Denying Motion To Dismiss (collectively, “Orders”), served February 23, 2022, the Bureau of Enforcement (BOE) submit this Status Report and state as follows:

Counsel for the BOE and Respondents Ocean Network Express PTE, LTD. and Ocean Network Express (North America), Inc. (collectively, “Respondents”), during March 1-4, 2022, exchanged emails and conferenced to discuss: a discovery schedule; possible ways to limit discovery; and possible stipulated facts pursuant to the Orders. The Parties agreed on several points, including that the best presentation of any differences was through separate filings. The Parties agreed to file a joint motion to extend the time for discovery and briefing by 30 days and to filing separate status reports. Consequently, BOE files this BOE Status Report.

BOE joins Respondents in and fully supports the joint motion seeking additional time for discovery and briefing. In the event the motion is denied, BOE suggests limiting discovery under the expedited schedule by means of early deadlines for the service of initial discovery requests and commencement of depositions. Depositions would be limited to five

per party. Each party would have one expert witness whose testimony would be in writing. Respondents requested an oral hearing in their Answer. BOE is not requesting an oral hearing. The parties have not agreed to mediation or exchanged settlement offers.

Based on the ALJ's suggested dates for the end of discovery and briefing BOE proposes the following schedule:

1. March 11, 2022 Parties to submit initial joint stipulations of fact
2. March 15, 2022 Deadline for service of Parties' Initial Discovery Requests
3. March 30, 2022 Deadline for Parties' Responses to Initial Discovery Requests
4. March 31, 2022 BOE's Expert Witness Report Deadline
5. March 31, 2022 Depositions to Commence
6. April 7, 2022 Depositions to Conclude
7. April 7, 2022 Last day to serve Discovery Requests
8. April 11, 2022 Parties file Joint Status Report and any additional joint stipulations of fact
9. April 15, 2022 Respondents' Expert Witness Report Deadline
10. April 22, 2022 End of Discovery
11. May 9, 2022 BOE's opening brief, findings of fact, and appendix deadline
12. May 24, 2022 Respondents' brief, findings of fact, appendix, and response deadline
13. May 31, 2022 BOE's reply brief deadline

The above proposed schedule is presented with the understanding that it may subsequently require leave to amend in order to accommodate motions to compel discovery, the ALJ's rulings on the motions and responses thereto, as well as other unanticipated events.

DATED: March 4, 2022

Respectfully submitted,

/s/ Brenda Doty
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CERTIFICATE OF SERVICE

I hereby certify that on this **4th** day of March, 2022, a copy of the foregoing BOE Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

____/s/____ Brenda Doty____